

declaration that Mr. Valinedi did not actually receive the Notices does not negate Defendants' evidence of proper service.

In addition to the above, Defendants present evidence that the Plaintiffs waived any claims regarding notice when they entered the Forbearance Agreement. (Bruetsch Decl. Ex. 2 at p. 2.) Written releases "are binding on the signatories and enforceable so long as they are ... 'clear, explicit and comprehensible in each [of their] essential details.'" (*Skrbina v. Fleming Cos.* (1996) 45 Cal.App.4th 1353, 1368 quoting *Powers v. Superior Court* (1987) 196 Cal.App.3d 318, 320.)

Based on the above, Plaintiffs have failed to establish their burden to show that they will more likely than not prevail on the alleged property claims, however they are titled.

Based on the above, Defendants' motion to expunge the lis pendens is **granted**.

Attorney Fees

California Code of Civil Procedure section 405.38 provides:

The court shall direct that the party prevailing on [a motion to expunge a lis pendens] be awarded the reasonable attorney's fees and costs of making or opposing the motion unless the court finds that the other party acted with substantial justification or that other circumstances make the imposition of attorney's fees and costs unjust.

Defendants request attorney fees in the amount of \$4,150.00 based on their time spent preparing the initial motion. In their moving papers, they note they expect to spend another 5 hours reviewing the opposition and preparing a reply, and 2 hours preparing for and arguing the motion. However, they limit the time they are actually seeking be awarded to the initial 8.3 hours spent on the initial motion – not any time spent on the reply and argument. They indicate their rate is \$500 per hour.

Plaintiffs do not oppose or even address this request in their opposition.

The Court finds that Defendants are the prevailing party as their motion is being granted. The Court also finds that Defendant's request for attorney's fees is reasonable. As such, the Court awards Defendant \$4,150 in attorney's fees.

Conclusion

Defendants' motion to expunge the lis pendens is **granted**. As the prevailing party, Defendants are awarded \$4,150 in attorneys' fees, payable within 30 days of entry of this order.

11. 9:00 AM CASE NUMBER: C25-01017

CASE NAME: STEVEN KENT VS. RICHARD KENT

***HEARING ON MOTION IN RE: FOR LEAVE TO FILE 2ND AMENDED COMPLAINT**

FILED BY: KENT, STEVEN JAMES

TENTATIVE RULING:

This hearing is moot and is **vacated**. The Parties submitted a Stipulation and Proposed Order to grant Plaintiff Steven James Kent leave to amend to file a Second Amended Complaint. The Court approved and executed this order on December 30, 2025. No appearance is required on January 21, 2026.